

CHAPTER 11

An Act to make certain provisions of a financial nature in connection with the operation of the European Monetary Agreement, and for purposes connected therewith. [19th February, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Without prejudice to the generality of the enactments relating to the Exchange Equalisation Account, that Account and the funds in that Account may be used for the payment or receipt of any sums payable by or to the Government of the United Kingdom in pursuance of the agreement entitled the European Monetary Agreement which was signed in Paris on the fifth day of August, nineteen hundred and fifty-five, and came into force on the twenty-seventh day of December, nineteen hundred and fifty-eight (in this Act referred to as the Agreement). Use of
Exchange
Equalisation
Account for
purposes of
European
Monetary
Agreement.

2.—(1) Subject to the provisions of this section, there shall be paid out of the Consolidated Fund of the United Kingdom any sums required for the purpose of making payments on behalf of the Government of the United Kingdom— Issues from
Consolidated
Fund and
payments into
Exchequer.

(a) under Articles 3 to 5 of the Agreement (which relate to the capital of the European Fund established by the Agreement);

(b) under the Annex to the Agreement (which provides for certain payments to be made by contracting parties upon the termination of the Agreement and the liquidation of the European Fund);

and the Treasury may pay out of the Consolidated Fund any sums not exceeding the amount for the time being due to the Government of the United Kingdom under Article 12 of the Agreement (which relates to the settlement of claims at the end of each accounting period).

(2) The sums to be paid out of the Consolidated Fund for the purpose of making payments under the provisions referred to in paragraphs (a) and (b) of subsection (1) of this section shall not exceed an amount equivalent to the contribution set out in relation to the United Kingdom in the Table contained in Article 3 of the Agreement as in force at the commencement of this Act (that is

to say eighty-six million five hundred and seventy-five thousand units of account within the meaning of Article 24 of the Agreement), or such larger amount as may be authorised by order of the Treasury.

2 & 3 Geo. 6.
c. 117.

(3) The Treasury may, for the purpose of providing any sums to be paid out of the Consolidated Fund for the purpose of making payments under the provisions referred to in the said paragraphs (a) and (b), or any part of such sums, or of repaying to that Fund all or any part of sums so paid, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939; and any securities created and issued for that purpose shall be deemed for all purposes to have been created and issued under that Act.

(4) There shall be paid into the Exchequer any sums received by the Government of the United Kingdom on account of payments made out of the Consolidated Fund under subsection (1) of this section; and any sums so paid into the Exchequer on account of payments so made in respect of which money was raised under subsection (3) of this section shall be issued out of the Consolidated Fund at such times as the Treasury may direct and shall be applied by the Treasury as follows, that is to say—

- (a) so much of those sums as represents capital shall be applied in redeeming or paying off debt of such description as the Treasury think fit;
- (b) so much of those sums as represents interest shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

Supplemental.

3.—(1) Except where otherwise expressly provided, any reference in this Act to the Agreement is a reference to the Agreement as for the time being amended under the terms of the Agreement or by any subsequent agreement.

(2) The power of the Treasury to make orders under subsection (2) of section two of this Act shall be exercisable by statutory instrument; and no such order shall be made unless a draft of the order has been laid before the Commons House of Parliament and approved by resolution of that House.

(3) The enactments described in the Schedule to this Act (being obsolete enactments relating to the Intra-European Payments Agreement and the Intra-European Payments Account, and to the European Payments Union Agreement) are hereby repealed.

Short title.

4. This Act may be cited as the European Monetary Agreement Act, 1959.

SCHEDULE

Section 3.

ENACTMENTS REPEALED

Session and Chapter	Short title	Extent of repeal
12, 13 & 14 Geo. 6. c. 17.	The American Aid and European Payments (Financial Provisions) Act, 1949.	In section one, in subsection (1), paragraph (b). In section two, in subsection (1), the words from "and", in the first place where that word occurs, to the end of the subsection. Sections three, four and five. Sections one and two.
14 & 15 Geo. 6. c. 8.	The European Payments Union (Financial Provisions) Act, 1950.	

CHAPTER 12

Agriculture (Small Farmers) Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Schemes for grants for increasing efficiency of small farm businesses.
2. Schemes for supplementing existing grants to persons carrying on certain small farm businesses in England, Wales or Northern Ireland.
3. Schemes for grants to persons carrying on certain small farm businesses in Scotland.
4. Supplementary provisions as to schemes.
5. Revocation of approval of programme and recovery of grant.
6. Interpretation.
7. Expenses.
8. Short title.

SCHEDULE—Instruments referred to in s. 2 (1) (b).

An Act to provide for the making of grants for the purpose of increasing the efficiency of small farm businesses; and for purposes connected with the matters aforesaid.

[19th February, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—